

Wells Fargo Bank N.A. v. Mary R Wells
Case No. CL24-00659

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

LEXINGTON INSURANCE COMPANY et al. v. DRESSER-RAND Co. et al.
Case No. CU25-03193

Motion for Leave to File First Amended Complaint.

TENTATIVE RULING:

The unopposed motion for leave to file a first-amended complaint is GRANTED.

The first amended complaint shall be filed and served in 10 court days. Responsive pleadings are due per Code of Civil Procedure.

TOM v. EDINGER
Case No. CU25-06789

Motion for Leave to File First Amended Complaint

TENTATIVE RULING

Preliminarily, it is not clear that the moving party had to seek leave of court to file a first amended complaint as to all defendants other than DONALD SHAUER JR. as an individual ("DONALD JR."). C.C.P. §472(a) authorizes a plaintiff to file a first amended complaint without seeking leave of court, if filed before a defendant has filed an answer, or if demurrer or motion to strike is filed, before the deadline for filing opposition. Other than DONALD JR., as an individual, the moving Defendants have not filed an answer to the initial complaint.

Leave to amend may be denied to a plaintiff who, after the granting of an anti-SLAPP motion, seeks to add new allegations subject to anti-SLAPP protection. (*Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073-1074; *Navellier v. Sletten* (2003) 106 Cal.App.4th 763, 773-774.) The proposed first amended complaint does not seek to add new allegations subject to anti-SLAPP protection.

Even as to DONALD JR. as an individual, the court has authority to grant Plaintiff leave to file an amended complaint.

C.C.P. §473 provides a mechanism by which a party can seek leave to file an amended complaint or answer. It provides in pertinent part:

The court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars

Absent prejudice to a party, judicial discretion to permit amendment of an operative pleading must be exercised liberally in favor of allowing amendment, at least when the moving has timely made the motion after learning the facts that suggested the amendment.

While a motion to permit an amendment to a pleading to be filed is one addressed to the sound discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. California Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 278 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390, 407.

Absent prejudice to a party, the courts liberally allow pleadings to be amended, at any point up to and including trial. (1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §6:652, p. 196.)

Defendants instead raised a series of arguments that could have been raised later, by way of demurrer to the first amended complaint.

Ordinarily, the court will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion to strike are premature. After leave to amend is granted, the opposing party has the opportunity to attack the validity of the amended pleading; ¶ 6:688. [See *Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)* (1989) 213 CA3d 1045, 1048, 261 CR 857, 859; *Atkinson v. Elk Corp.* (2003) 109 CA4th 739, 760, 135 CR2d 433, 448—“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”]. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §§6:644—6:647, pp. 193-194.

The parties are advised that neither side’s briefs adequately address the complicated issues as to viability of the first amended complaint and the effect of the prior settlement agreement on claims not expressly addressed therein. The prior settlement agreement did not contain a general release of all known or unknown claims. But, the parties did agree to mediate any future disputes related to the settlement and included an attorneys fees clause. Neither party has compelled mediation. It occurs to the court that continued litigation to final resolution might cost far more than the value of the assets in dispute.

QUINCY TAN, D.D.S. et al. v. CITY OF FAIRFIELD et al.
Case No. CU25-12030

FAIRFIELD’s Demurrer

TENTATIVE RULING

Defendant CITY OF FAIRFIELD’s (“FAIRFIELD”) unopposed demurrer directed to Plaintiffs QUINCY TAN, D.D.S. and CAROL HADDOCK’s complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

The court observes that Plaintiffs filed a first amended complaint on June 30, 2026. An amended pleading supersedes the original pleading and so moots a challenge to the now-defunct original pleading. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.) However, a party may only amend its pleading without leave of court or stipulation of the parties after a demurrer is filed if the amended pleading is filed within the time for opposition to the demurrer. (Code Civ. Proc., § 472.) CITY served its demurrer on February 4, 2026, with hearing noticed for July 8, 2026. The deadline for filing opposition to FAIRFIELD’s demurrer was June 24, 2026. (Code Civ. Proc., § 1005, subd. (b) [opposition papers due 9 court days before hearing on demurrer].) Plaintiffs did not submit a stipulation of the parties or obtain leave of court to file the first amended complaint. Plaintiffs’ submitted first amended complaint does not supersede the original complaint or moot the demurrer in these circumstances. Plaintiffs not having filed opposition to FAIRFIELD’s demurrer, the court